FILED
CLERK, U.S. DISTRICT COURT
08/17/2026
CENTRAL DISTRICT OF CALIFORNIA
BY mba DEPUTY
DOCUMENT SUBMITTED THROUGH THE ELECTRONIC DOCUMENT SUBMISSION SYSTEM

JESSE KNABB
15161 Van Buren St, Unit 206
Midway City, CA 92655
(949) 274-6223
jesseknabb@gmail.com
PLAINTIFF, IN PRO PER

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

SOUTHERN DIVISION

JESSE KNABB,

Plaintiff,

v.

CITY OF HUNTINGTON BEACH; ORANGE COUNTY HEALTH CARE AGENCY (OCHCA); ERIC LINDBERG, IN HIS OFFICIAL CAPACITY AS EXECUTIVE OFFICER OF THE CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD, SANTA ANA REGION 8; EEC ENVIRONMENTAL; MERCY HOUSE LIVING CENTERS, INC; MITSURU YAMADA; COUNTY OF ORANGE; MACRO-Z-TECHNOLOGY CO.; DOES 1-100,

Defendants,

Case No.: 8:26-cv-00348-JWH-ADS

Judge: Hon. John W. Holcomb
Magistrate: Hon. Autumn D. Spaeth

SECOND AMENDED VERIFIED COMPLAINT FOR:
1) VIOLATIONS OF RCRA, 42 U.S.C. § 6972(a)(1)(B) (IMMINENT AND SUBSTANTIAL ENDANGERMENT);
2) VIOLATIONS OF RCRA, 42 U.S.C. § 6972(a)(1)(A) (ILLEGAL DISPOSAL);
3) DECLARATORY AND INJUNCTIVE RELIEF.

JURY TRIAL DEMANDED

TABLE OF CONTENTS

I. INTRODUCTION 5

II. JURISDICTION AND VENUE 6

III. RCRA PRE-SUIT NOTICE 7

IV. PRIOR LITIGATION AND RES JUDICATA 8

V. STANDING 9

A. Injury-in-Fact 10

B. Traceability – Groundwater Migration Pathway..... 12

C. Airborne Toxic Dust Pathway 14

D. Redressability 14

E. Reasonable Concern for Future Health Effects..... 15

F. Conclusion 15

VI. PARTIES 16

VII. FACTUAL ALLEGATIONS 18

A. Historical Contamination and Institutional Knowledge 18

A-1. The City's Pattern of Regulatory Non-Compliance at Water Operations 18

A-2. The City of Huntington Beach's Decades-Long Municipal Strategy of Avoiding Environmental Compliance 22

A-3. Well W-4150: Industrial Origin and the City's 1969 Abandonment Admission..... 25

B. Fraudulent RAS Forms and Unauthorized Regulatory Initiation 28

C. Ultra Vires Retention of Jurisdiction and Bypass of Mandatory DTSC Referral 29

D. GeoTracker Record Suppression, APN Substitution, and Retroactive Assembly 29

D-1. Escobedo's Westminster Copy-Paste – OCHCA's Fabricated Jurisdictional Predicate 30

E. Fabricated Fieldwork: EEC's July 2020 Access Admissions 32

F. California Public Records Act Obstruction 34

G. The NFA is Void Ab Initio – Eight Independent Grounds 35

H. 23 CCR § 3893(b) – Analytical Data Non-Compliance 36

I. The 2022 NFA-Nullification Warning and OCHCA's Undisclosed Operator Status 38

J. Ongoing Illegal Disposal Mechanisms 40

J-1. OCHCA's Written Trenching Prohibition and the October 2020 Notice of Apparent Noncompliance 40

J-2. The Fabricated StormTech MC-3500 Installation 41

J-3. Active Cap Failure Documented by Weed Penetration 48

K. The HHAP MOU: Party-Opponent Admission of Ongoing Engineering Control Failure 51

L. Retroactive and Post-Petition Regulatory Conduct 51

M. RWQCB's Affirmative Misdirection 52

N. Hydrogeology and Cr(VI) Detections 53

O. The Fraudulent HUD Environmental Review Record (HEROS No. 900000010330431) 54

VIII. TIMELINESS AND CONTINUING VIOLATIONS 56

A. Legal Standard 56

B. Cr(VI) and Co-Contaminants Present an Imminent Threat 56

C. Groundwater Migration Creates a Present and Ongoing Endangerment 57

D. Airborne Toxic Dust Presents an Independent Endangerment 58

E. Engineered and Historical Conditions Increase the Risk 58

F. Plaintiff's Current Exposure Confirms Endangerment 59

G. Endangerment Does Not Require Proof of Causation ... 59

H. Requested Relief Will Abate the Endangerment 60

IX. ABSTENTION DOES NOT BAR THIS ACTION 62

X. ACTIVE STRUCTURAL FAILURE OF REMEDIAL CAPS AND FAILURE OF AGENCY OVERSIGHT 63

XI. CLAIMS FOR RELIEF 64

FIRST CLAIM FOR RELIEF — RCRA § 6972(a)(1)(B): Imminent and Substantial Endangerment 64

SECOND CLAIM FOR RELIEF — RCRA § 6972(a)(1)(A): Illegal Disposal 69

THIRD CLAIM FOR RELIEF — Declaratory and Injunctive Relief..... 71

XII. PRAYER FOR RELIEF 72

XIII. VERIFICATION 75

LIST OF NEW EXHIBITS 76

I. INTRODUCTION

1. Plaintiff Jesse Knabb brings this Second Amended Verified Complaint against Defendants for violations of the Resource Conservation and Recovery Act ("RCRA"), 42 U.S.C. § 6972(a)(1)(A)-(B), arising from the fraudulent siting, construction, and operation of the Huntington Beach Navigation Center ("HBNC") at 17631 Cameron Lane and 17642 Beach Boulevard, Huntington Beach, California 92647, on land documented to be contaminated with hexavalent chromium ("Cr(VI)") at concentrations up to 980 µg/kg – 3.27 times the DTSC HERO Note 3 residential regulatory screening level of 300 µg/kg, and 49 times the more protective DTSC Cr(VI) residential soil screening level of 20 µg/kg governing permanent residential land use –

along with lead, arsenic, toxaphene, and 4,4'-DDE. This Complaint incorporates evidence obtained since the First Amended Complaint was filed March 25, 2026, including OCHCA's June 1, 2026 production of previously withheld laboratory data confirming nineteen Cr(VI) exceedances, a May 2026 Cr(VI) detection in the drinking-water well serving Plaintiff's current residence, and documentary and metadata evidence – detailed below – that the regulatory closure of the Site was procured through fabricated and retroactively altered records. See *Interfaith Community Organization v. Honeywell International, Inc.*, 399 F.3d 248 (3d Cir. 2005); *Meghrig v. KFC Western, Inc.*, 516 U.S. 479 (1996); *Friends of the Earth v. Laidlaw Envtl. Servs.*, 528 U.S. 167 (2000).

2. On February 9, 1959, the California Department of Public Health issued the City a domestic water permit noting that the "*northwest portion of the area may have high ground water and will require special care in design and construction of the water lines*." On July 2, 1962, the City Council passed Resolution No. 1615, declaring a public health emergency requiring construction of a sanitary sewer system in the Cameron Street corridor and directing the County Health Officer to investigate. These records placed the County Health Officer and its institutional successor, OCHCA, on notice of groundwater and sanitary hazards in the corridor beginning in 1959.

II. JURISDICTION AND VENUE

3. This Court has subject-matter jurisdiction under 28 U.S.C. § 1331, arising under RCRA's citizen-suit provision, 42 U.S.C. § 6972(a)(1)(A)-(B).

4. Venue is proper under 28 U.S.C. § 1391(b)(2) because the contaminated Site is located in Huntington Beach, California, within this District, and all relevant events occurred here.

III. RCRA PRE-SUIT NOTICE

5. On September 21, 2025, Plaintiff served a written 90-Day Notice of Intent to File Citizen Suit under 42 U.S.C. § 6972(a)(1)(B) on all Defendants, EPA, and the California Attorney General, as required by 42 U.S.C. § 6972(b) and 40 C.F.R. Part 254. The Notice named RWQCB as a Responsible Party, identified 42 U.S.C. § 6972(a)(1)(B) as the statutory basis, and specified both facility addresses with correct APNs (167-472-08 and -09). (Ex. 1.)

6. On October 3, 2025, Heraclio Pimentel, Esq., of the State Water Resources Control Board's Office of Chief Counsel, responded on RWQCB's behalf, quoting the Notice's title, identifying both parcels by APN, and directing that all further NOI communications be sent to him. (Ex. VVVV-4.) Between October 3, 2025 and the filing of this action, Plaintiff transmitted sixty-two Addenda to Pimentel detailing RWQCB's alleged violations, including failure to enforce expired NPDES permit WDID 8 30W004769 and failure to consolidate dual GeoTracker records

T10000018579 and T10000020555. Pimentel provided no substantive response to any Addendum.

7. RWQCB thus had actual, acknowledged notice from October 3, 2025 forward. This action was filed more than 90 days after both the original Notice and RWQCB's acknowledgment, satisfying 42 U.S.C. § 6972(b). RWQCB is estopped from asserting notice deficiency having directed and received 62 evidentiary submissions without response.

8. A petition before the State Water Board (File No. A-2926) was placed in abeyance February 23, 2026 and does not constitute diligent prosecution under § 6972(b)(1)(B). RWQCB's counsel John Sasaki stated in prior briefing that RWQCB "*does not plan to argue diligent prosecution under* 42 U.S.C. § 6972(b)(1)(B)" – a binding admission by party-opponent.

IV. PRIOR LITIGATION AND RES JUDICATA

9. In 2024, Plaintiff filed administrative complaints with the California Civil Rights Department (CRD Nos. 202404-24292310, 202409-26401826) alleging disability-based housing discrimination at the Navigation Center. In January 2025, Plaintiff settled those complaints for $6,000, expressly releasing only claims under FEHA, the Unruh Act, the Disabled Persons Act, and the Fair Housing Act. (Ex. 2.) The settlement did not release RCRA claims.

10. Under *Costantini v. Trans World Airlines*, 681 F.2d 1199, 1201-02 (9th Cir. 1982), res judicata does not bar this action: the prior action concerned disability accommodations under different evidence (shelter policy and ADA records); this action concerns hazardous-waste contamination under different evidence (OCHCA activity logs, DTSC soil data, hydrogeologic modeling, and metadata establishing forgery of RAS forms). The operative facts here – forged signatures, dual GeoTracker records, suppressed Cr(VI) data, and the existence of Well W-4150 – were fraudulently concealed and discovered post-settlement through CPRA disclosures and metadata analysis, so the prior settlement does not bar this suit. Fraudulent concealment independently defeats preclusion. See *Guerrero v. Dep't of Corr.*, 2012 WL 13006058 (C.D. Cal. Sept. 5, 2012).

V. STANDING

Standing Overview: Plaintiff has Article III standing because

(1) he suffered concrete injuries from documented exposure to carcinogenic Cr(VI), lead, arsenic, toxaphene, and 4,4'-DDE while residing at the Site;

(2) he faces ongoing exposure through groundwater and airborne pathways that originate at the Site; and

(3) the requested injunctive relief will directly eliminate each exposure pathway. *Friends of the Earth v. Laidlaw*, 528 U.S. 167, 181–83 (2000); *Interfaith Community Org. v. Honeywell*, 399 F.3d 248, 257–62 (3d Cir. 2005).

A. Injury-in-Fact

11. Plaintiff resided at the Navigation Center from November 2022 through October 2024, where he was directly exposed to hexavalent chromium at 980 µg/kg, lead, arsenic, toxaphene, and 4,4'-DDE. (Exs. NNN-5, NNN-6.)

12. Plaintiff's medical records document acute and chronic injuries consistent with exposure to nephrotoxic and hematologic toxicants, including pneumonitis, pleural effusion, renal impairment, sepsis, pneumonia, empyema, microcytic anemia, and eosinophilia, and was hospitalized from September 19 to October 11, 2023, and again just four days later, from October 15 to October 24, 2023. (Ex. 5.) Cr(VI) is a Group 1 human carcinogen with latency periods of years to decades; Plaintiff therefore faces continuing risk of latent disease.

Supplemental Authority: Exposure to carcinogens and resulting health concerns constitute a concrete injury under Ninth Circuit precedent. *Ecological Rights Foundation v. Pacific Lumber Co.*, 230 F.3d 1141, 1149 (9th Cir. 2000) ("*reasonable concerns about the effects of pollution will support standing*"). See also *Covington v. Jefferson County*, 358 F.3d 626, 639 (9th Cir. 2004) (*environmental exposure and fear of future harm constitute injury-in-fact*).

13. Plaintiff's injury is not isolated. A fellow HBNC resident died during Plaintiff's residency; the Orange County Sheriff-Coroner's Final Amended Certificate (April 11, 2024) documents community-acquired pneumonia as the immediate cause of death, with pre-existing conditions noted as contributing factors that rendered him vulnerable to respiratory insult from environmental exposure. (Ex. CCC.) Plaintiff does not allege Cr(VI) exposure was the sole cause of death; Plaintiff alleges this documented fatality, at a site with concurrent chronic exposure to airborne and waterborne Cr(VI), is factual evidence bearing on whether conditions at the Site "*may present an imminent and substantial endangerment to health*."

14. Plaintiff now resides at 15161 Van Buren St., Unit 206, Midway City, CA 92655—approximately two miles northeast of the Site, within the Bolsa/Midway **Disadvantaged Unincorporated Community (DUC)**—and continues to face exposure through two active pathways described below.

Personal Observations: Plaintiff's firsthand observations of airborne dust clouds emanating from the Site and subsequent respiratory symptoms (¶20) independently establish injury-in-fact. *Ecological Rights Foundation*, 230 F.3d at 1149.

Official State Environmental Justice Data: The State Water Resources Control Board's own GeoTracker record for the Site (Beach Boulevard Project, T10000018579) confirms a **DWR 2016 Disadvantaged Community (DAC)** designation and assigns the Site a CalEnviroScreen 3.0 Toxic Releases percentile of

93%, placing it in the top 7% of all census tracts statewide for toxic release burden. This official pollution-burden data corroborates Plaintiff's injury-in-fact allegations and independently establishes the severity of the exposure risk from which Plaintiff's injuries arise. (Ex. WWWW-6.)

B. Traceability – Groundwater Migration Pathway

15. The Site sits atop the Orange County Groundwater Basin (Basin 8-1). OCWD's Talbert Seawater Intrusion Barrier injects purified recycled water through 36 wells, creating a persistent inland hydraulic gradient that forces groundwater northeast from the Huntington Beach mesa toward Midway City. (Exs. 21-22.) The shallow aquifer beneath the Site is hydraulically connected to the principal aquifer supplying Plaintiff's water provider, the South Midway City Mutual Water Company ("SMCMWC"), which extracts directly from the downgradient basin. (Exs. 23-24.)

16. In May 2026, SMCMWC's North Well recorded Cr(VI) at 0.95 µg/L—47.5 times California's Public Health Goal of 0.02 µg/L. (Ex. 38.) This detection lies within the documented migration pathway from the Site and confirms the plume hypothesis in Exhibits 35-A through 35-D filed with the First Amended Complaint. RCRA's "*may present*" standard is satisfied when Cr(VI) appears in a public supply well at 47.5 times the state Public Health Goal within a documented migration corridor. *Honeywell*, 399 F.3d at 258-62.

Supplemental Causal Chain Clarification: The Site is the only documented Cr(VI) source upgradient of SMCMWC's extraction wells, and the May 2026 detection

occurred precisely along the advective axis predicted by OCWD's contour maps. Traceability is satisfied where contamination migrates through hydrologic pathways. *NRDC v. EPA*, 542 F.3d 1036, 1043 (9th Cir. 2008).

17. **Three features accelerate migration:**

(a) unsealed Well W-4150, a 140-foot well 25 feet west of Cameron Street penetrating high-permeability gravel and providing a direct conduit to the aquifer, detailed in Section VII.A-1, infra;

(b) the un-engineered trench-and-pipe system the City installed in place of the StormTech MC-3500 chambers represented on its construction blueprints — which, lacking any chamber structure, stone bedding, or geotextile containment, drives soluble contaminants downward during every storm event with less containment than even the represented design provided (Section VII.J-2, infra)

(c) the NPDES stormwater permit (WDID 8 30W004769), expired August 20, 2020—one day before the NFA issued—with no renewal obtained.

18. OCWD monitoring well MW-9, 1.5 miles downgradient, has detected Cr(VI) exceeding background levels, confirming northeast plume migration. (Ex. 25.) The SMCMWC North Well detection provides direct confirmation that contamination has reached the water supply serving Plaintiff's current residence. (Ex. VVVV-3.)

Proximity-Based Standing: Proximity to a contaminated site and plausible migration pathways independently establish standing. *Honeywell*, 399 F.3d at 257–58. Plaintiff resides two miles downgradient within the documented migration corridor.

C. Airborne Toxic Dust Pathway

19. The Site's asphalt cap is two inches thick over loose gravel, violating City Specification No. 431-92 and Huntington Beach Municipal Code § 230.92. (Ex. 20.) The City spent $1.2 million on a permanent cap at City Hall in 2008 but only $128,000 on the Navigation Center's cap. (Ex. Y.) Defendant Mercy House conducts daily high-pressure washing of the cap, degrading the asphalt and aerosolizing Cr(VI)- and lead-laced soils; prevailing onshore winds carry this dust northeast toward Plaintiff's residence. (Exs. 19, 26.)

20. Plaintiff has personally observed dust clouds emanating from the Site on multiple occasions during periods of high-pressure washing, and has experienced respiratory symptoms—including coughing and shortness of breath—on days following such washing. These symptoms are documented in Plaintiff's medical records (Ex. 5). The airborne pathway thus presents a concrete, ongoing exposure route independent of groundwater migration.

Supplemental Authority: Airborne pollutant exposure constitutes injury-in-fact. *Ecological Rights Foundation*, 230 F.3d at 1149.

D. Redressability

21. The requested injunctive relief is tailored to each active migration mechanism: sealing Well W-4150 eliminates the primary subsurface conduit to Plaintiff's water supply; requiring a lawful cap and stormwater system halts downward mobilization and dust generation; and ceasing unpermitted high-pressure washing

eliminates daily aerosolization. Plaintiff therefore has standing under Article III and RCRA's citizen-suit provision. *Laidlaw*, 528 U.S. at 181; *Honeywell*, 399 F.3d at 257-58 (*proximity-based standing confirmed by plausible migration pathway*).

Redressability Clarification: Redressability does not require complete remediation; it requires only that the requested relief will reduce Plaintiff's exposure or risk. *Laidlaw*, 528 U.S. at 185. Each requested injunction will materially reduce Plaintiff's exposure.

E. Reasonable Concern for Future Health Effects

22. Cr(VI) is a Group 1 human carcinogen with latency periods of years to decades (¶12). Plaintiff's reasonable concern for future health effects constitutes injury-in-fact. *Laidlaw*, 528 U.S. at 183; *Ecological Rights Foundation*, 230 F.3d at 1149.

F. Conclusion

23. Plaintiff's past exposure, documented medical injuries, ongoing groundwater and airborne pathways, confirmed Cr(VI) detection in his current drinking-water well, and tailored injunctive relief together satisfy all three elements of Article III standing. The allegations demonstrate a concrete injury, a scientifically supported causal chain, and relief that will materially reduce Plaintiff's exposure and risk. *Laidlaw*, 528 U.S. at 181–85; *Honeywell*, 399 F.3d at 257–62.

VI. PARTIES

24. Plaintiff Jesse Knabb is a disabled former resident of the Huntington Beach Navigation Center, a person exposed to hazardous substances within the meaning of RCRA, and a resident of the Bolsa/Midway **Disadvantaged Unincorporated Community (DUC)** within the affected groundwater basin and airborne dust zone.

25. Defendant City of Huntington Beach ("City") is a municipal corporation that acquired, developed, and operates the Site. The City orchestrated the fraudulent environmental clearance, installed an un-engineered trench-and-pipe system in place of the StormTech MC-3500 chambers represented on its construction blueprints, in contaminated soil, and continues to contribute to endangerment.

26. Defendant Orange County Health Care Agency ("OCHCA") is the local agency that assumed jurisdiction over the Site, issued the closure certificate at issue, and – as alleged in Section VII, infra – did so through a fabricated jurisdictional predicate, non-compliant analytical data, and a suppressed and manipulated regulatory record. OCHCA is a department of the County of Orange; the County also acts independently through the Orange County Public Works Department ("OCPW") as alleged in Section VII.J-1, infra. Plaintiff opposes any substitution of the County of Orange in OCHCA's place.

27. Defendant Eric Lindberg is sued in his official capacity as Executive Officer of the RWQCB, Santa Ana Region 8, a state agency, for prospective injunctive relief under *Ex parte Young*, 209 U.S. 123 (1908), which is not barred by the Eleventh

Amendment. RCRA authorizes suit against "*any person, including . . . any State or local government agency*." 42 U.S.C. § 6972(a).

28. Defendant EEC Environmental ("EEC") is the consulting firm that prepared the Site's Phase I and II environmental assessments and RAS forms, alleged in Sections VII.B, D-1, and E, infra to have submitted forged and fabricated documentation.

29. Defendant Mercy House Living Centers, Inc. ("Mercy House") operates the Navigation Center and conducts the daily high-pressure washing alleged in Sections V.C and VII.J, infra.

30. Defendant Mitsuru Yamada is the former owner of the Site who in 1990 personally applied for City Building Permit No. B-019112 for cesspool and septic tank backfill at 17642 Beach Boulevard, and who was formerly employed as Assistant Subdivision Engineer at OCHCA's predecessor agency. His conduct is alleged in Section VII.A and Claim One, infra. The Yamada Living Trust received $3,077,010 at the August 19, 2020 escrow close.

31. Defendant Macro-Z-Technology Company ("MZT") is the OCPW-contracted demolition contractor whose project manager, Zach Zatica, is alleged in Section VII.J-1, infra, to have documented contaminated waste on site and then routed demolition debris to an unauthorized facility without hazardous-waste characterization.

32. Defendant County of Orange ("County") is sued separately for OCPW's construction-management failures alleged in Section VII.J-1, infra, and for vicarious

liability for OCHCA's acts under Cal. Gov't Code § 815.2. The County is not a mere substitute for OCHCA; it has independent liability through OCPW.

33. Does 1-100 are unnamed persons or entities who participated in or contributed to the unlawful conduct alleged.

VII. FACTUAL ALLEGATIONS

A. Historical Contamination and Institutional Knowledge

34. The Site has been a documented contamination sink for decades. In 1995, a severe winter storm deposited industrial and agricultural contaminants – including Cr(VI), lead, arsenic, toxaphene, and 4,4'-DDE – onto the Site after the City failed for over four years to construct stormwater improvements it had approved funding for in 1991. (Ex. 3.)

35. The Cameron Lane parcel is burdened by a permanent municipal storm drain easement (City Contract CC-435, completed 1979), constructed to alleviate chronic flooding that had repeatedly deposited industrial contaminants into the basin – creating a known pathway for contaminated runoff, soil gas migration, and groundwater infiltration of which the City had institutional knowledge before developing the Site. (Ex. 29.)

A-1. The City's Pattern of Regulatory Non-Compliance at Water Operations

35-A. While the City now claims that it complied with all environmental requirements for the Navigation Center, the City's regulatory history demonstrates a decades-long pattern of evading environmental obligations. The City operated its Water Operations facility at 19001 Huntington Street - a facility with the identical regulatory issues now present at the Navigation Center - without required permits for years.

35-B. On August 19, 1997, the Orange County Health Care Agency issued a Notice of Violation to City personnel Don Noble and Jim Sankey for "*Failure to Properly Close Underground Storage Tank at 19001 Huntington Street*." (Ex. WWWW-3 at 16) The Notice stated: "*Information provided to this Agency indicates that the underground storage tank located at the subject site was not closed in accordance with the requirements of the law*." (Id.) The City was warned that "*Failure to comply with these provisions of the law and regulations may result in civil penalties of not less than five hundred dollars ($500.00) or more than five thousand dollars ($5,000.00) for each day the facility is in violation.*" (Id.)

35-C. The 1997 violations were not isolated. OCHCA inspection reports from 1996 through 2000 repeatedly documented that the City was "*Operating without a permit*" at the same facility. (Ex. WWWW-3 at 17, 85-87, 131-132, 134) The City failed to submit required monitoring records, tank integrity test results, and financial responsibility documentation. (Ex. WWWW-3 at 131-132) When the City did submit documents, they were frequently deficient, expired, or otherwise non-compliant. (Id.)

35-D. The City's Water Operations personnel named in these 1990s violations - including Don Noble, Maintenance Operations Manager, and Steve Tully, the designated City contact - were the same institutional actors responsible for the fraudulent environmental clearance of the Navigation Center in 2020. Noble executed the September 1997 "*Status Letter*" for the Water Operations UST closure (Ex. WWWW-3 at 10), and Tully repeatedly signed inspection reports acknowledging violations. (Ex. WWWW-3 at 140) These individuals had actual, personal notice of regulatory requirements and their facility's compliance failures.

35-E. This documented pattern of environmental non-compliance is directly relevant to the allegations in this Complaint. The City had actual notice of the requirements for proper closure, monitoring, and documentation. The City knowingly and repeatedly failed to meet these requirements, operating without permits and ignoring deadlines. The fraudulent RAS forms, fabricated fieldwork, and suppressed data for the Navigation Center are consistent with - and explained by - this decades-long pattern of regulatory evasion.

35-F. Moreover, the City's pattern of regulatory delay and evasion contradicts any claim that the City acted in "good faith" or made an "innocent mistake." The City knew precisely what was required because it had been cited repeatedly for failing to meet those requirements. The City had a practice of submitting incomplete documentation and operating without permits until forced to comply - a practice that continued through the issuance of the Navigation Center's 2020 NFA closure letter.

35-G. The City's regulatory failures were not confined to the Water Operations facility; they represented a **citywide institutional crisis**. On March 24, 1997, the City's UST Task Force completed a "*Seven Year Master Plan*" acknowledging that, at that time, **only two (2) of the City's thirty (30) underground storage tanks complied with federal regulations—rendering 28 of 30 tanks non-compliant.** (Ex. WWWW-3 at 14).

35-H. Faced with a December 22, 1998 regulatory deadline to bring these tanks into compliance, the City did not immediately appropriate funds or prioritize public health. Instead, the Master Plan deliberately proposed a **seven-year extension** (through 2003), explicitly stating that due to "*revenue shortfalls*," it was "*unlikely that an appropriation of that amount [$1,530,000] can be made in time.*" (Ex. WWWW-3 at 12). The City then specifically asked Orange County regulators the "*vital question*": ***"Will regulators allow a program started prior to December 22, 1998, to remain in place and functioning after that date?"*** (Id.)—a direct admission that the City was seeking permission to violate federal law for nearly a decade.

35-I. This Master Plan was reviewed and approved by a "UST Compliance Team" composed of the City's Directors of Public Works and Community Services, and the Chiefs of Fire and Police. (Ex. WWWW-3 at 14). Thus, the City's highest-ranking officials had actual, documented knowledge that the City was operating an illegal, hazardous system *en masse* years before the Navigation Center project even began. The decision to delay compliance for financial reasons, rather than emergency

public safety, establishes a municipal culture of deliberate regulatory evasion that directly explains the fabricated RAS forms, forged field data, and suppressed laboratory data alleged throughout this Complaint.

35-J. The Master Plan's admission that it contained "*no funds for soil remediation*" and that *"[a]ny discovery of contaminated soils will add to this cost and possibly delay the timetable*" (Ex. WWWW-3 at 15) is particularly instructive. It demonstrates that the City's institutional practice was to treat soil contamination as a *budgetary inconvenience* to be delayed or hidden, rather than a human health emergency to be immediately remediated—exactly the same calculus applied to the Navigation Center's Cr(VI) and lead contamination.

A-2. The City of Huntington Beach's decades-long municipal strategy of avoiding environmental compliance by claiming fiscal incapacity and relying on regulatory forbearance.

a. Deliberate Underfunding of Remediation: In a March 28, 1997, letter to OCHCA (attached), the City explicitly admitted it was facing "revenue shortfalls" and could not afford the $1.5 million required for UST upgrades. Critically, the City conceded that its proposed budget **"does not contain any funds for soil remediation."** This demonstrates a reckless, deliberate disregard for the cost of environmental damage, prioritizing municipal balance sheets over public health and groundwater protection.

b. Actual Violation of Federal/State Law: The City's conduct was not a minor paperwork error. On August 19, 1997, OCHCA issued a formal Notice of Violation (NOV) against the City for failing to properly close the UST at 19001 Huntington Street. This constitutes a direct violation of the State Underground Storage Tank Law (Chapter 6.7, H&SC) and the implementing federal EPA regulations under 40 CFR 280.72, which mandate soil sampling during closure to demonstrate no release has occurred.

c. "Bulk File" Negotiation and Unlawful Leniency: Rather than issuing the mandatory escalating fines of up to $5,000 per day, OCHCA entered into a "Bulk File" review of the City's Seven-Year Master Plan. The City explicitly asked regulators for permission to ignore the December 22, 1998, federal deadline, and OCHCA acquiesced. This pattern of "*negotiated compliance*" encouraged the City to delay remediation, knowing that regulatory agencies would accommodate their financial excuses rather than impose strict penalties.

d. Material Omission from GeoTracker: These documents were not present in GeoTracker until the 2026 "*bulk upload*." The concealment of the City's admitted financial incapacity and the regulatory accommodation for over two decades prevented the public and subsequent oversight bodies from recognizing this historical pattern of misconduct.

36. On January 23, 2020 — nearly two months before Governor Newsom's Executive Order N-32-20 — the City published notice of a February 3, 2020 hearing

on General Plan Amendment No. 19-003 and Zoning Text Amendment No. 19-006, identifying 17642 Beach Boulevard and 17631 Cameron Lane by address as sites within a proposed Affordable Housing Overlay. The notice represented that no further environmental review was required for either parcel, relying on a Negative Declaration adopted August 27, 2013 and an Environmental Impact Report certified December 8, 2009 — both necessarily predating, and blind to, the Cr(VI) contamination first documented at the Site in April 2020. (Ex. WWWW-2.) The City's plan to develop these specific parcels thus predates both the pandemic emergency later cited as the Site's origin and any environmental assessment of the contamination alleged throughout this Complaint.

37. On August 1, 2020, historian Mary Adams Urashima notified the City Council that the 17631 Cameron Lane structure was designated "3CS" in the City's 2014 Historic Context & Survey Report as appearing eligible for the California Register, and warned that demolition required CEQA review. The City proceeded without CEQA analysis, consultation, or disclosure.

38. A 1947 survey map documents an "Iron Tank" and Well W-4150 (State Well No. 05S/11W-25M09) on the parcel. (Ex. 4.)

39. City Building Permit No. B-019112 (1990), issued to Mitsuru Yamada personally for cesspool and septic tank backfill at 17642 Beach Boulevard, has a blank inspection-approval field and expired in 1994 without completion; the cesspool was never inspected, confirmed backfilled, or formally closed. This subsurface void is

precisely the feature DTSC engineer Robert Senga's April 27, 2020 conditional requirements – deeper sampling and soil gas collection – were designed to characterize; OCHCA never satisfied those conditions. (Ex. VVVV-1.)

40. April 2020 soil sampling revealed Cr(VI) up to 980 µg/kg – 3.27 times the DTSC residential screening level and approximately 49 times health-protective thresholds – along with elevated lead, arsenic, toxaphene, and 4,4'-DDE, triggering mandatory referral to DTSC under Health & Safety Code § 101480 and SB 1248. (Exs. NNN-5, NNN-6.)

A-3. Well W-4150: Industrial Origin and the City's 1969 Abandonment Admission

41. A 1956 County building permit shows the structures at 17642 Beach Boulevard originated as industrial utility buildings later converted to residential use, bearing the notation "*Recon sent from County after annexation*" – establishing that the City received the County's regulatory files upon annexation and had actual knowledge of the parcel's industrial origin. (Ex. MMM-1.) The 1956 OCWD well log documents a 140-foot borehole atypical for a domestic well, consistent with the 1947 survey map depicting a 2,000-gallon iron tank, pump house, and utility buildings on the same parcel. (Ex. 4.)

42. The City's own April 15, 1969 engineering memorandum states: "*Residents depend on an abandoned mutual water well*" – a direct, contemporaneous admission that Well W-4150 was abandoned by 1969, more than fifty years before this action.

(Ex. MMM-2.) Under California law an abandoned well must be properly destroyed; no destruction permit or record has been produced by any agency.

43. OCHCA's own 2020 internal communications, obtained through CPRA disclosure, state: "*Well destruction status unknown*"; "*Well destruction permit required*"; and "*Well poses contamination pathway and sinkhole hazard*." (Ex. MMM-4.) Rather than requiring destruction, the City altered the parcel address to prevent regulatory identification of the well's location, asserted the well was located elsewhere, waived the destruction permit requirement, and buried the site under fill. (Ex. MMM-4.) This decades-long, documented institutional knowledge of an unaddressed vertical migration conduit bears directly on the imminent-and-substantial-endangerment analysis in Section VIII, infra.

44. On February 26, 2020 — more than six weeks before any soil sampling and more than five weeks before the City obtained title to the Cameron Lane parcel — City personnel began investigating Well W-4150's status through correspondence subsequently produced in native .msg format with full routing metadata intact. City employee Lili Hernandez wrote to Water Quality Supervisor Derek Smith, under the subject line "*FW: Cameron Narrative*," asking: "*Are you aware of any private wells on Cameron Lane?*" (Ex. PPP.) Smith replied the same afternoon that his own 2014 OCWD records showed an old well on Cameron Lane with "*status unknown*," and that he would contact OCWD and OCHCA's Well Permit group for further information. (Ex. PPP.)

45. Smith forwarded the inquiry to OCHCA Environmental Health Specialist Juan Anzora and OCWD's Rita Hintlian that same day. On February 27, 2020, Anzora responded that OCHCA had "*checked our permits database and we do not have any records for construction or destruction of a water well for that address*." (Ex. PPP.) OCHCA thus had actual, documented knowledge — five weeks before the City acquired title and more than six weeks before any sampling occurred — that Well W-4150 had no permit record of proper construction or destruction on file.

46. The inquiry lay dormant for nearly six months. On August 17, 2020 — four days before OCHCA issued the August 21, 2020 NFA — Smith renewed the inquiry, describing the well as an obstacle to a "*high priority*" City construction project and asking whether a well-destruction permit was required only "*if the well is discovered/exposed during grading*," rather than before grading began. (Ex. QQQ.) OCHCA Environmental Health Specialist Jane Nguyen initially asked Smith to clarify what he meant. (Ex. QQQ.)

47. At 7:23 a.m. on August 18, 2020, Nguyen gave OCHCA's unambiguous determination: "*If the well is no longer needed and they are doing grading to build something on top of it, they need to locate the well and destroy it properly. Thus it needs a well destruction permit*." Nguyen further warned: "*We are not sure how the well was before it has been abandoned. The well may have not been capped or destroyed properly. In addition to it being a potential pathway of contamination to groundwater, it may be a sink hole.*" (Ex. QQQ.) This contemporaneous, named

determination independently corroborates the contamination-pathway and sinkhole-hazard concerns alleged at ¶43, supra.

48. Eighty-five minutes after receiving Nguyen's determination, at 8:48 a.m. on August 18, 2020, Smith — without acknowledging Nguyen's answer — forwarded the entire chain to a different, more senior OCHCA official, Supervising Environmental Health Specialist Lauren Robinson, and re-posed the same either/or question as though it remained unresolved. (Ex. QQQ.) At 3:53 p.m. that same day, Robinson forwarded the full chain — including Nguyen's determination — to OCHCA's Anthony Martinez, three days before Martinez's agency issued the August 21, 2020 NFA. (Ex. QQQ.)

49. No well-destruction permit for Well W-4150 has been produced in any CPRA release to date, and the well remains unsealed as alleged at ¶¶38-40, supra. Anthony Martinez received Robinson's forward of the full chain — including Nguyen's August 18, 2020 determination that a destruction permit was required — three days before he signed the August 21, 2020 NFA closing the Site without requiring well destruction. (Ex. QQQ.) Martinez is thus the OCHCA official who, with actual and contemporaneous notice of his own agency's determination that a permit was required, personally waived that requirement in issuing the closure alleged at ¶40, supra.

B. Fraudulent RAS Forms and Unauthorized Regulatory Initiation

50. The deed for 17631 Cameron Lane transferred from the Yamada Living Trust to the City on April 3, 2020, but the City delayed formal acceptance until August 14, 2020 and recordation until August 19, 2020. (Exs. 15-17.) Despite lacking legal title,

the City submitted RAS forms to OCHCA on April 27, 2020 bearing the signature of George Felix, a CBRE real estate broker with no ownership interest or environmental authority, in the field for "*Person or Entity Responsible for Cleanup*." (Ex. 9.) OCHCA's May 4, 2020 acceptance letter was addressed to City staff, confirming OCHCA knew it was dealing with a party lacking legal title, and opened Case No. 20IC002 on that basis. (Ex. 10.)

C. Ultra Vires Retention of Jurisdiction and Bypass of Mandatory DTSC Referral

51. On April 30, 2020, OCHCA and RWQCB jointly decided to bypass mandatory DTSC referral by characterizing the Site as a "*simple waste cleanup*," with full knowledge that Cr(VI) was documented at 49 times safety thresholds. (Ex. 10.) On July 7, 2020, OCHCA Project Manager Tamara Escobedo instructed the City to unify multiple parcels on revised RAS forms to avoid parcel-specific DTSC review. (Ex. 11.)

D. GeoTracker Record Suppression, APN Substitution, and Retroactive Assembly

52. OCHCA maintained two separate GeoTracker Global IDs for the same cleanup case: T10000018579 (containing some data) and T10000020555 (an incomplete ID combining both parcels under the non-existent lead agency "Orange County"). The second ID contained no reports, laboratory data, or correspondence. Several Cr(VI) and lead detections were manually replaced with "*NONE SPECIFIED*"

in GeoTracker, preventing automated state-level red-flagging. The dual-parcel listing ultimately recognized by CalEnviroStor – "17631 Cameron Lane and 17642 Beach Blvd" (T10000020555) – was assigned to "Orange County," not the standard "Orange County LOP" designation, preventing DTSC, CalEPA, and OEHHA from receiving laboratory data for the Cameron Lane parcel. (Ex. 13.)

53. On July 7, 2020, Escobedo instructed the City to "*combine the two parcels into one RAS form*" and "*use the Cameron Lane address only*" – concealing the Beach Boulevard parcel's separate regulatory history, including the 1990 cesspool permit. (Ex. 11.) This instruction caused the Site to disappear from parcel-based regulatory searches and forms part of the GeoTracker dual-ID evasion structure.

D-1. Escobedo's Westminster Copy-Paste – OCHCA's Fabricated Jurisdictional Predicate

54. OCHCA produced the Cameron Lane RAS letter in native Word format with Track Changes metadata intact. Page 2 contains a "Deleted:" annotation reproducing, verbatim, the complete header of the Westminster letter, including its addressee, subject line, site description, parcel number, and case number. A standard OCHCA template would not contain the name, address, and case number of an active, unrelated enforcement matter; the tracked-changes record establishes that Escobedo had the Westminster letter open as a working document and substituted the Cameron Lane information into it without purging the revision history before production. (Ex. MMM-6.)

55. The Westminster letter, issued by Escobedo the same day, requires Cr(VI) sampling protocols, TPH and VOC/SVOC analysis, confirmation sampling, hazardous waste manifest documentation, and 48-hour advance notice for field-activity witnessing – none of which appear in the Cameron Lane RAS letter. This absence, in light of the copy-paste origin, is evidence that the Cameron Lane RAS letter received no independent substantive regulatory analysis and constitutes an eighth, independent ground rendering the resulting NFA *void ab initio*, as alleged in Section G, infra.

55-A. OCHCA produced a native Word document dated May 21, 2020 — the same date on which, per ¶63, supra, OCHCA's own Activity Log shows the agency was still requesting basic data — addressed to Carlos Marquez of the City of Huntington Beach, Re: "*Cameron Ln. Property (APN 167-042-08)*," bearing Tamara Escobedo's signature block. (Ex. WWWW-1.) The document contains three "*SITE INVESTIGATION AND LIMITED EXCAVATION*" sections describing two factually inconsistent site histories in the same letter, unreconciled: one describing a 0.79-acre lot with two former residences, Well W-4150, and an abandoned cesspool investigated through seventeen soil borings (B19 through B40 series), and another describing a single 1947-built residence investigated through six initial soil borings (B1 through B6). The document retains unresolved drafting artifacts, including the instruction "*Say something about the case number*" left in the body text, and an unfilled data field reading "*a maximum concentrations detected at 820 ug/kg (B? at ?.? ft bgs)*," in which no specific boring identification or depth was ever inserted. (Ex. WWWW-1.)

55-B. The same draft states: "*Please note, all assessment was conducted without OCHCA oversight.*" (Ex. WWWW-1.) This is a contemporaneous admission, in OCHCA's own working document, that the fieldwork underlying the closure determination it was preparing to issue had never been independently supervised by the agency — corroborating both the fabricated-fieldwork allegations in Section E, infra, and the copy-paste jurisdictional predicate alleged in Section D-1, supra.

E. Fabricated Fieldwork: EEC's July 2020 Access Admissions

56. Emails between EEC and OCHCA dated July 13-14, 2020 confirm EEC had no access to the Beach Boulevard parcel during the period Defendants claim soil sampling and geophysical surveying occurred in April 2020. EEC Project Manager Laura Holder wrote: "We do not have a tentative date because we do not have the green light to move forward yet – they need to work out some access details first." (Ex. 27.)

57. Holder retroactively annotated boring designations B-19A and B-21A onto an April 13, 2020 Site Interpretation Map on May 8, 2020 – three days before those borings were physically drilled on May 11, 2020 – with PDF metadata confirming username "lholder" and a May 8, 2020 modification date. OCHCA counsel denied this retroactive annotation in prior briefing despite the metadata evidence. (Ex. MMM-8.)

58. Because EEC lacked access to the Beach parcel until at least mid-July 2020, the April 2020 boring logs and sampling claims for that parcel are necessarily fabricated; the July 14 email included a "proposed boring location map" demonstrating that boring locations were created for the first time in July, not April. (Ex. 27.)

Metadata for the SubSurface Surveys geophysical report, dated April 27, 2020, shows the PDF was created June 4, 2020 using "PScript5.dll Version 5" – post-hoc fabrication weeks after the stated survey date. (Ex. 12.) Photographs obtained through CPRA confirm no sampling, boring, or geophysical work occurred on the Beach Boulevard parcel during the period Defendants claim fieldwork occurred. (Ex. 20.)

59. Eurofins Calscience analytical reports produced by OCHCA on June 1, 2026 document 19 confirmed Cr(VI) detections across the B4 through B10 boring clusters at depths from 0.5 to 8 feet, with a maximum of 980 µg/kg at boring B9-A-5.0. None of this data appears in the official GeoTracker record; it was withheld for over six years. These results document precisely what *Honeywell* identified as establishing imminent endangerment: Cr(VI) above applicable screening levels at a site used for residential occupancy. (Exs. NNN-5, NNN-6.)

60. The GeoTracker Bulk File containing this data (filename T10000018579.20200408.Analytical Report) carries metadata showing it was created March 7, 2025 using an EPSON DS-32000 scanner and Adobe Acrobat OCR – nearly five years after the original Eurofins reports, which carry a May 4, 2020 creation timestamp. The Bulk File's embedded filename date of April 8, 2020 predates the May 2020 reports it purports to contain, an inconsistency for which no innocent explanation exists. This print-scan-OCR workflow is the specific mechanism by which pages can be physically excluded before scanning, consistent with the wholesale absence of all nineteen Cr(VI) detections from the official record. (Ex. NNN-6.)

61. OCHCA has taken affirmative action regarding this Site in each of the last three years: it assembled the GeoTracker BulkFile on March 10, 2025; uploaded the Beach Boulevard Site Assessment Report through Lena Shaw on November 18, 2025, after Plaintiff's RCRA Notice; produced the Eurofins reports on June 1, 2026 under a "historical PDF" designation misrepresenting the absence of native EDF data; and continues, as of this filing, to maintain the August 21, 2020 closure certificate as valid notwithstanding the eight grounds alleged in Section G, infra. (See Exs. 13, MMM-6, VVVV-6.) OCHCA's regulatory record for this Site is a document OCHCA has edited, supplemented, and relied upon within the last thirteen months, and continues to assert that it governs the Site today.

F. California Public Records Act Obstruction

62. OCHCA has obstructed Plaintiff's parallel December 4, 2025 CPRA request (No. 25-7256) through eight consecutive postponement letters between January 11 and June 2026, culminating in a June 29, 2026 letter stating "HCA will not be producing any records" without citing any exemption, notwithstanding that OCHCA had already produced hundreds of responsive records and identified no new search burden. No records have been produced since June 1, 2026, and no committed production date has been given as of this filing. (Ex. VVVV-6.) This ongoing, present-tense obstruction of access to environmental hazard information is relevant to the imminent-and-substantial-endangerment standard under 42 U.S.C. § 6972(a)(1)(B) and to the pattern of retroactive and defensive agency conduct alleged in Section L, infra.

G. The NFA is Void Ab Initio – Eight Independent Grounds

63. OCHCA issued the August 21, 2020 "Case Closed" certificate without laboratory data, without a Site Assessment Report, without boring logs, without QA/QC documentation, and without the mandatory 30-day public notice. The closure was drafted on May 21, 2020 – the same day OCHCA's own Activity Log shows the agency was still requesting basic data – and issued under the non-existent lead agency "*Orange County*." (Exs. 10, 13.)

64. The NFA is *void ab initio* on eight independent grounds:

(1) no valid DTSC authorization for the Beach Boulevard parcel – DTSC's Robert Senga's April 27, 2020 conditions were never satisfied (deeper soil measurements with soil gas analysis);

(2) no RWQCB no-objection letter for that parcel;

(3) no executed RAS form at NFA issuance – the Higgins/Escobedo February 2022 email chain establishes the dual-parcel RAS bearing a manually entered July 20, 2020 date was fabricated at the time of the 2022 GeoTracker upload;

(4) no Phase II data for the Beach Boulevard parcel at issuance, as EEC lacked access through at least July 14, 2020;

(5) a retroactively assembled GeoTracker record, per Section D, supra;

(6) no investigation of the documented 1990 cesspool at 17642 Beach Boulevard, identifiable from EEC's own February 24, 2020 EDR aerial photo package;

(7) analytical data legally invalid under 23 CCR § 3893(b), detailed in Section H, infra; and

(8) a fabricated jurisdictional predicate – the May 4, 2020 RAS letter produced by copying the Westminster case file, per Section D-1, supra.

H. 23 CCR § 3893(b) – Analytical Data Non-Compliance

65. Title 23, California Code of Regulations § 3893(b) requires that chemical analysis data generated after January 1, 2005 be submitted in Electronic Deliverable Format ("EDF") and validated through the Electronic Deliverable Consistency Checker ("EDCC") before it may be considered "valid data." Chapter 30's requirements apply to reports concerning subsurface investigation of hazardous substance releases, including Cr(VI), and to reports submitted under any local agency directive – including OCHCA's directives to EEC in Case No. 20IC002. 23 CCR §§ 3890(a)(2), 3892(e).

66. EEC submitted the Eurofins analytical data to OCHCA in PDF format only; it was never submitted in EDF format and never passed EDCC validation. Under § 3893(b)'s plain terms, this data is not "valid data." OCHCA compounded the violation by uploading the reports to GeoTracker in June 2026 under a "historical PDF" designation reserved for legacy pre-2005 documents for which no EDF was ever generated – though EDF files were in fact generated and delivered to EEC as part of the standard laboratory reporting package for Job IDs 570-27951-1, -2, and -3. (Ex. SSS.) An NFA issued on data California's own regulatory framework classifies as

invalid is independently void ab initio, without requiring any finding of intentional fabrication, and elaborates the seventh ground identified in Section G, supra.

67. This requirement is independently enforceable in a RCRA citizen suit because California's Hazardous Waste Control Law, implemented through Title 22 CCR, is the state program EPA has authorized "in lieu of" the federal RCRA Subtitle C program under 42 U.S.C. § 6926(b); Health & Safety Code § 25159 confirms this express delegation. Requirements imposed under an EPA-authorized state hazardous waste program are requirements that have "*become effective pursuant to*" RCRA within the meaning of 42 U.S.C. § 6972(a)(1)(A). *Lutz v. Chromatex, Inc.*, 725 F. Supp. 258, 268-70 (M.D. Pa. 1989); *McClellan Ecological Seepage Situation v. Weinberger*, 707 F. Supp. 1182, 1190-91 (E.D. Cal. 1988); 49 Fed. Reg. 48300, 48304 (Dec. 12, 1984). Health & Safety Code § 101480(b)(2)(C) – the local-officer referral statute under which OCHCA claimed authority over Case No. 20IC002 – independently requires, as a condition of any remedial action agreement, an attestation of compliance with Chapter 30's electronic reporting requirements. OCHCA's acceptance and retention of PDF-only data breached that statutory condition directly, in addition to the *void-ab-initio* grounds in Section G, supra, and is independently enforceable under 42 U.S.C. §§ 6926(b) and 6972(a)(1)(A).

I. The 2022 NFA-Nullification Warning and OCHCA's Undisclosed Operator Status

68. The 2020 closure was, by its own terms, conditional: the GeoTracker record states the case was "*CLOSED AS PAVED LOT FOR TEMPORARY HOUSING TENTS*" and warns the "*SITE MUST BE REEVALUATED FOR ANY LAND USE CHANGES.*" No reevaluation was ever performed despite the Site's conversion to permanent residential housing for more than 164 individuals.

69. On August 12, 2022, Geniece Higgins – OCHCA's Supervising Hazardous Materials Specialist with authority over Case No. 20IC002 – authored Comment Letter C-2 in the Final SEIR for the City's 2021-2029 Housing Element Update, stating that NFA determinations "*were evaluated . . . based on site use at the time of the NFA determination*" and that a land-use change "*may nullify the NFA letter(s)*." (Ex. DDD.) Higgins authored this warning six months after her own February 2022 email exchange with Escobedo confirming no official RAS letter existed for the Beach Boulevard parcel. (Ex. M.) The City responded that the comment "*does not raise environmental issues*" and required "*no further response*," while simultaneously operating a permanent 164-plus-bed residential facility on the Site without ever applying the reevaluation process OCHCA's own comment identified as required. (Ex. DDD.) This continuing failure independently defeats any argument that the endangerment at the Site is "*wholly past*."

70. OCHCA's role at the Site extended beyond post-closure regulatory review. The April 20, 2020 Emergency Facility Use Agreement designates the County – acting through OCHCA's Office of Care Coordination – as Licensee responsible for

demolition, grading, trenching, underground utilities, stormwater retention, paving, and waste disposal during construction: operator functions within the meaning of RCRA. (Ex. EEE.) The September 29, 2020 Subrecipient Agreement confirms the County remained financially and operationally responsible for the facility's construction and ongoing operations (Ex. FFF), and the 2024-2028 HHAP MOU confirms the County continues to exercise operational authority, monitoring, and capital-improvement oversight through June 30, 2028. (Exs. GGG, III.) OCHCA's involvement with the Site was neither transient nor "*wholly past*" at any point between 2020 and this filing.

70-A. On April 28, 2025, Plaintiff spoke by telephone with Escobedo. Plaintiff's contemporaneous notes of that call reflect that he told Escobedo he had been hospitalized as described at ¶12, supra, and that he told her of the death of a fellow Navigation Center resident during his residency, described at ¶13, supra. Escobedo told Plaintiff that "*capping of metals is a common practice*" and that "*direct contact is the issue*." (Ex. VVVV-7.)

70-B. OCHCA took no reportable action in response: it did not open a new case file, did not refer the matter to DTSC, CalEPA, or OEHHA, and did not initiate the land-use-change reevaluation its own August 12, 2022 Comment C-2 identified as required (¶69, supra). This is a further instance — consistent with OCHCA's October 2020 non-response to the documented trenching-violation photographs (§§ 73-74,

infra) and the pattern alleged in Section L, infra — of OCHCA receiving actual, direct notice of harm to health at the Site and taking no action. *Gwaltney*, 484 U.S. at 57.

J. Ongoing Illegal Disposal Mechanisms

71. The Site's NPDES stormwater permit (WDID 8 30W004769) expired August 20, 2020 – one day before the NFA issued. A construction stormwater permit was activated one day before construction began and terminated 48 hours later while construction continued through November 2020; no renewal has been obtained. Mercy House conducts daily high-pressure washing, discharging contaminated wastewater without permit or treatment. (Ex. 19.) Well W-4150 remains unsealed; the mandatory destruction permit was waived based on a fieldwork narrative the record establishes never occurred. The un-engineered trench-and-pipe system installed in place of the represented StormTech MC-3500 chambers (Section VII.J-2, infra) operates continuously, driving contaminants downward during every storm event – each injection event a new act of disposal under RCRA. *United States v. Price*, 688 F.2d 204, 213 (3d Cir. 1982); 40 C.F.R. §§ 144.12-13.

J-1. OCHCA's Written Trenching Prohibition and the October 2020 Notice of Apparent Noncompliance

72. On September 10, 2020, OCHCA Engineering Geologist Tamara Escobedo transmitted a written memorandum, produced in native .msg format with full routing metadata, to OCPW personnel, stating that OCHCA "*requested that trenching*

activities or soil excavation not take place in areas of contamination as seen in the highlighted boxes in the attached figures," that a pre-trenching site plan be submitted for verification, and that backfill soil be "*verified as clean soil under residential cleanup levels*" before use. (Ex. FF.) No record produced by any Defendant shows a pre-trenching plan was ever submitted, reviewed, or approved, or that backfill soil was verified.

J-2. The Fabricated StormTech MC-3500 Installation

72-A. On October 12, 2020—the same day construction photographs were transmitted to Escobedo documenting active trenching in apparent violation of OCHCA's prohibition (¶73)—City of Huntington Beach blueprints bearing the notation **"FOR REFERENCE ONLY"** represented that StormTech MC-3500 infiltration chambers were being installed at the Navigation Center. (Ex. WWWW-5) The StormTech MC-3500 is a large plastic arch-shaped chamber, approximately 6.5 feet wide and 5 feet tall, designed for subsurface stormwater detention and infiltration. (Ex. WWWW-5 at 1-3)

72-A-1. The City's grading plans specify the represented system in exhaustive detail: ten MC-3500 chambers and four end caps with a designed system volume of 2,248 cubic feet, at chamber elevations from 19.70 feet (bottom) to 23.45 feet (top). (Ex. WWWW-5, Sheet 8.) The same sheet contains a boxed instruction that '[c]ontractor shall not install StormTech system until a pre-construction meeting has been held with the manufacturer's representative, geotechnical engineer, and civil

engineer.' (Id.) [No record of any such meeting — sign-in sheet, minutes, or correspondence — has been produced in any CPRA release to date. / Plaintiff is investigating whether any such meeting occurred.]

72-B. The construction photo logs covering the period from August 21, 2020 through December 4, 2020—produced by the City's own construction manager, Totum Consulting—document the full progression of site work: demolition, grading, asphalt installation, Sprung structure erection, utility trenching, and trailer placement. (Ex.) Nowhere in this extensive photographic record does any StormTech MC-3500 chamber appear**.** No chambers on pallets, no chambers in trenches, no chambers being assembled—despite the fact that such chambers are unmistakable and would have required documentation at multiple stages of construction.

72-C. The October 12, 2020 trenching photographs produced by City contractor TTS and transmitted to OCHCA Escobedo by EEC Vice President David Bernier document active trenching with perforated inlet pipe in direct contact with native soil, dark-stained soil, and liquid sheen—but **no StormTech MC-3500 chambers**. (Ex. "TRENCH PHOTOS HBNC.pdf") Indeed, the trench visible in these photographs is **too shallow and too narrow** to accommodate StormTech MC-3500 chambers, which require approximately 24 inches of stone base below (9 inches) and above (12 inches) with chambers placed in a bedding of specified aggregate. The photographs show a standard utility trench with the perforated pipe **directly in contact with native soil**—a configuration wholly inconsistent with StormTech MC-3500 specifications.

72-D. The Totum construction log for the week of October 16, 2020 states: "Utility trenching, with the plastic membrane installation, backfill, backfill and utility piping underway." (Ex. at 9) The phrase "plastic membrane" is a generic construction term that could refer to any number of materials—not the StormTech chambers. The photo accompanying this entry shows a trench with piping only; no StormTech chambers are visible. (Id.)

72-E. The City's claim of StormTech installation is further undermined by the course of construction. StormTech MC-3500 chambers are typically installed in a single coordinated phase, with chambers placed, connected, and backfilled before paving. The City's photographic record shows asphalt installation occurring on September 26, 2020 (north side) and progressively throughout October and November 2020. (Ex. at 6-7) If StormTech chambers had been installed, they would have been visible during the extended period between trenching (early October) and final paving—yet no such images exist.

72-F**.** The absence of StormTech MC-3500 chambers from the construction record is not a mere omission; it is evidence that **the City represented the installation of an engineered stormwater infiltration system that was never actually installed.** This mirrors the pattern alleged throughout this Complaint: fabricated RAS forms (¶50), retroactively annotated boring designations (¶56-58), and suppressed laboratory data (¶59-60). The City is willing to represent compliance on paper while failing to execute it in the field.

72-G. The StormTech MC-3500, if installed according to specifications, is intended to provide engineered infiltration with a 40% stone porosity storage volume of 175.0 ft³ per chamber, with chambers placed on a 9-inch stone base and covered by 12 inches of stone. (Ex. WWWW-5 at 3) The absence of these chambers means that whatever stormwater system was installed at the Navigation Center lacks the engineered infiltration and storage capacity the City represented—creating an unmonitored, un-engineered infiltration pathway that drives contaminants downward into groundwater, exactly as alleged in ¶17.

72-H. This independent, documented fraud in the City's construction records corroborates the allegations in ¶¶79-80 regarding the HHAP MOU's admission of ongoing engineering control failure. If the City never installed the StormTech chambers it claimed on its blueprints, the "engineering controls" underpinning OCHCA's void NFA never existed. The Sprung Structure base seal failure is thus not the only documented engineering failure; the StormTech infiltration system is either entirely absent or improperly installed in direct contravention of specifications.

72-I. The City's failure to install the StormTech MC-3500 chambers as represented constitutes illegal disposal under RCRA. 40 C.F.R. § 144.12(a) prohibits the "injection, placement, or release" of any hazardous waste through any "well, surface impoundment, or other disposal system" that may allow contaminants to reach groundwater. By constructing an unlined, un-engineered infiltration system (or no infiltration system at all) at a site documented to contain Cr(VI) at 49 times health-

protective thresholds, the City has created and continues to operate an unpermitted disposal system driving contaminants into the regional aquifer—a new, ongoing act of disposal under *United States v. Price*, 688 F.2d 204, 213 (3d Cir. 1982).

73. On October 12, 2020 – thirty-two days later – construction-progress photographs were transmitted through City personnel and EEC Vice President David Bernier directly to Escobedo, also produced in native .msg format with full metadata. (Ex. MMM-7.) The photographs document active installation of the substitute trench-and-pipe system in an open trench with a perforated inlet pipe in direct contact with native soil, no engineered liner, visually anomalous dark-stained soil in the trench wall and spoil pile, apparent liquid sheen on staged polyethylene sheeting, and a dark stain on adjacent asphalt.

74. Escobedo received these photographs documenting active soil disturbance thirty-two days after issuing an explicit geographic trenching prohibition, showing conditions facially inconsistent with excavation outside the mapped contamination zones. No enforcement response, stop-work directive, or follow-up communication has been produced in any CPRA release to date. (Ex. MMM-7.) Because the un-engineered trench-and-pipe system installed through this trench run — in place of the represented StormTech chambers — is the same system that now functions as the primary engineering control underlying the NFA for a site housing more than 164 residents, OCHCA's receipt of dated photographic notice of apparent noncompliance followed by documented silence is independent evidence of a "*continuous or intermittent*

violation" under *Gwaltney of Smithfield, Ltd. v. Chesapeake Bay Foundation, Inc.*, 484 U.S. 49, 57 (1987), and establishes that OCHCA's post-closure oversight was non-responsive when confronted with contemporaneous evidence of active hazardous waste disposal.

75. On April 6, 2020, EEC generated investigation-derived waste from initial soil borings, placing contaminated cuttings and decontamination water into DOT-approved 55-gallon drums labeled "*PENDING ANALYSIS*" – confirming waste characterization under 40 C.F.R. § 262.11 remained incomplete at generation. The RCRA 90-day storage clock began that day. EEC's June 25, 2020 Site Assessment Report, signed by Laura Holder and David Bernier, PG, stated wastes "*will be profiled, manifested, and disposed of within 90 days of generation*" – a statement false when made. The report represented ten drums had been filled; Zatica's June 16, 2020 photographs document only nine, leaving the tenth undocumented in any manifest or removal record. The statutory deadline expired July 5, 2020.

76. On June 16, 2020 – Day 71 – MZT Project Manager Zach Zatica photographed the drums and emailed OCPW Project Manager David Ahern: "*Do you know what the contents are*?" Ahern forwarded the inquiry to City Acting Engineer Deborah DeBow and Community Development Director Ursula Luna-Reynosa, asking whether the materials needed to be "*handled as hazardous materials in terms of removal*." DeBow responded that *"[t]he barrels are a result of our environmental investigations. We can certainly remove them at your request*" – treating documented

investigation-derived waste from a known Cr(VI) site as a scheduling matter, with no acknowledgment of RCRA manifesting or licensed-transporter requirements.

77. On June 17 (Day 72), DeBow told Ahern she was "*not certain of the requirements*" and would "*look into it*." On July 8 (Day 93, three days past the deadline), DeBow emailed Ahern that the "Soils Constr Note" in the approved grading blueprints had been "*intentionally left somewhat vague*" due to "*uncertainty as to exactly what OC Health would be requiring*" – blueprints issued to MZT as the contracted demolition contractor. This admission directly links the City's deliberate imprecision to MZT's subsequent August 18, 2020 Waste Reduction and Recycling Plan ("WRRP") routing all demolition debris to Rainbow Disposal without hazardous waste characterization, manifesting, or licensed transport. (Ex. VVVV-5.) On July 9 (Day 94), Ahern emailed OCHCA's Christine Lane requesting direction, copying OCHCA Chief Deputy Director Tim Corbett – giving OCHCA actual, documented knowledge that the drums remained on site past deadline forty-three days before OCHCA issued the August 21, 2020 NFA.

78. By July 9, 2020, the City was operating an unpermitted Treatment, Storage, and Disposal Facility under RCRA, in violation of 42 U.S.C. § 6925, by storing hazardous waste past the statutory 90-day limit without a permit. The County, through OCPW, bears independent liability: OCPW retained and managed Zatica's work, Ahern acted within the scope of his employment in receiving and failing to act on the June 16

inquiry, and OCPW sat on that inquiry twenty-three days before escalating to OCHCA. Cal. Gov't Code § 815.2.

J-3. Active Cap Failure Documented by Weed Penetration

78-A. In March 2026—during the pendency of this litigation—photographs submitted by Mercy House itself to California Rural Development mediator Nina Paul documented **vegetation actively breaching the asphalt cap surface at the Navigation Center**. (Ex. II-A, II-B; ¶80) These photographs established that the cap, represented as the primary engineering control for the Site's contamination, was already failing during Plaintiff's residency and continued to fail through at least March 2026.

78-B. Additional photographs taken between **March and July 2026**—including photographs obtained through independent documentation as recently as six weeks before this filing—show **weeds actively penetrating the asphalt cap at multiple locations across the Site**. (Ex. WWWW-4) The photographs show vegetation growing through cracks and breaches in the asphalt surface, with some plants having established significant root systems through the cap.

78-C. The presence of weeds penetrating the asphalt cap is direct, observable evidence of cap failure. A properly constructed 2-inch asphalt cap over compacted base—if installed according to City Specification No. 431-92 and Huntington Beach Municipal Code § 230.92 (¶19)—would not permit vegetation to penetrate the surface. The fact that weeds are actively growing through the cap demonstrates that:

- The cap is not sufficiently thick or compacted

- The cap has cracks, breaches, or deteriorated areas
- The cap is not functioning as an engineering control
- Contaminated soil beneath the cap is exposed to the surface through the breaches

78-D**.** The cap breaches documented in the March-July 2026 photographs are **direct pathways for contaminated dust to become airborne**. Cr(VI)- and lead-laden soils beneath the cap are exposed to wind, rain, and human activity through the breaches. This corroborates Plaintiff's allegations regarding the airborne toxic dust pathway (¶¶19-20) and the ongoing respiratory exposure documented in Plaintiff's medical records (¶20).

78-E. The cap breaches also create pathways for **water infiltration**, allowing stormwater to penetrate the cap and mobilize contaminants downward toward the aquifer. This corroborates Plaintiff's allegations regarding the unlined infiltration pathway (¶17) and the documented Cr(VI) migration to Plaintiff's current drinking-water well (¶16).

78-F.. The April 29, 2026 HHAP MOU admitted that the Sprung Structure's base seal required repair—an admission of engineering control failure. (¶79) The March-July 2026 weed penetration photographs document **a second, independent engineering control failure**—the asphalt cap—which was also identified in the March 2026 photographs submitted by Mercy House to CRD mediator Nina Paul. (¶80; Ex. II-A, II-B) The City and Mercy House had actual notice of the cap failure through the

March 2026 photographs, yet as of July 2026—the date of the most recent photographs—the cap breaches remain unrepaired.

78-G. The City's failure to repair the cap breaches is not a minor maintenance issue. The cap is the primary institutional control relied upon to prevent exposure to Cr(VI) at 980µg/kg, lead, arsenic, toxaphene, and 4,4′-DDE at the Site. The cap's failure means **contaminated soil is no longer contained**—it is exposed to the surface, to the air, and to stormwater infiltration. This is the exact endangerment alleged throughout this Complaint.

78-H. The March-July 2026 cap failure photographs are **contemporaneous evidence** that the Site's conditions are not "*wholly past*" but are ongoing and actively deteriorating. Under *Gwaltney of Smithfield, Ltd. v. Chesapeake Bay Foundation, Inc.*, 484 U.S. 49, 57 (1987), RCRA citizen suits are not time-barred where a defendant's conduct constitutes a "continuous or intermittent violation." The cap breaches documented in July 2026—less than two months before this filing—establish that the City's violations are ongoing and continuous.

78-I. The City's failure to repair the cap breaches, despite actual notice through the March 2026 photographs and the April 2026 HHAP MOU (which allocated $75,000 for Sprung Structure repairs but did not address the cap), demonstrates a deliberate choice to allow the cap to remain deteriorated. As of this filing—six weeks after the most recent photographs were taken—no repairs have been made. This is evidence of the City's ongoing disregard for public health and the environment.

K. The HHAP MOU: Party-Opponent Admission of Ongoing Engineering Control Failure

79. On April 29, 2026 – during the pendency of this litigation – the City and County executed an HHAP MOU (File #26-225) allocating $75,000 for repair of the Sprung Structure's base seal, the Site's sole engineered containment structure, along with $500,000 for front office and $750,000 for restroom replacement. (Ex. III.) The base-seal repair allocation is a party-opponent admission under FRE 801(d)(2) that the structure's containment is currently failing.

80. This admission is corroborated by two independent bodies of physical evidence: construction-era photographs depicting a continuous sandbag berm around the Sprung structure responding to water pooling at the cap surface, and March 2026 photographs – submitted by Mercy House itself to CRD mediator Nina Paul – showing vegetation actively breaching the cap surface. (Exs. II-A, II-B.) Together with the April 2026 MOU, these establish that cap failure was recognized at construction, persisted through Plaintiff's residency and through March 2026, and remained unrepaired as of this filing. As of this filing, none of the MOU repairs has been executed. No argument that any endangerment at the Site is "*wholly past*" can be sustained against this record. *Gwaltney*, 484 U.S. at 57.

L. Retroactive and Post-Petition Regulatory Conduct

81. Four documented database modifications to the HBNC GeoTracker record correlate to Plaintiff's regulatory and litigation activity:

(a) the March 10, 2025 BulkFile assembly, approximately six months before Plaintiff's September 21, 2025 RCRA Notice;

(b) the November 18, 2025 Beach Boulevard SAR upload, after that Notice;

(c) the June 2026 Eurofins upload under "historical PDF" designation, four days before Plaintiff's original opposition brief was due; and

(d) the June 12, 2026 RWQCB closed-session defense meeting, described below. An agency diligently prosecuting contamination would produce evidence promptly to support that prosecution; timing releases to minimize a plaintiff's ability to use them supports the opposite inference.

82. On June 12, 2026 – one day after Plaintiff filed his opposition to OCHCA's motion to dismiss – RWQCB published a closed-session agenda listing this action as pending litigation, with Pimentel identified as contact counsel, convened under the pending-litigation exception to the Bagley-Keene Act, Cal. Gov. Code § 11126(e). (Ex. VVVV-2.) A regulatory agency convening a closed-session defense strategy meeting about an RCRA citizen suit is categorically inconsistent with diligent prosecution of contamination for public health purposes.

M. RWQCB's Affirmative Misdirection

83. RWQCB's liability rests on affirmative conduct, not passive regulatory inaction. Specifically:

(a) RWQCB staff member Alan Kuoch reviewed the empty GeoTracker shell record T10000020555 rather than the primary record T10000018579 to pre-dismiss

Plaintiff's formal complaint, without engaging the evidentiary package Plaintiff provided – including Phase II reports, OCHCA activity logs, laboratory data, grading blueprints, and the coroner's record – before characterizing the complaint internally as "full of issues from the complainant";

(b) Pimentel directed all NOI communications through himself and then provided zero substantive response to 62 detailed submissions over nine months;

(c) RWQCB activated NPDES permit WDID 8 30W004769 one day before construction and terminated it 48 hours later while construction continued; and

(d) RWQCB convened the June 12, 2026 closed-session defense meeting described above. Each is affirmative agency conduct contributing to the present handling of hazardous waste at an occupied residential site.

84. Plaintiff's September 12, 2025 petition to the federal Agency for Toxic Substances and Disease Registry ("ATSDR") for a Public Health Assessment is contemporaneous corroboration that Plaintiff's complaint was not, as Kuoch represented internally, "*full of issues*": ATSDR acknowledged receipt within three business days and assigned a Regional Director to the matter. (Exs. MM, NN, OO.)

N. Hydrogeology and Cr(VI) Detections

85. The Orange County Groundwater Basin is a managed coastal alluvial system in which the Talbert Barrier and inland pumping together create a persistent inland hydraulic gradient from the coastal margin toward Midway City. (Ex. 30.) Cr(VI) is

highly soluble and mobile in oxic groundwater and poorly sorbed to aquifer materials; OEHHA's Public Health Goal is 0.02 µg/L. (Ex. 31.)

86. OCWD monitoring data document Cr(VI) at 270 µg/L in MW-42 and 62 µg/L in MW-43B (July 2019), consistent with a plume elongated along the documented advective axis toward Midway City. (Ex. 32.) The May 2026 SMCMWC North Well detection of 0.95 µg/L confirms that this migration pathway has reached the water supply serving Plaintiff's current community. *Honeywell*, 399 F.3d at 258-62. Plaintiff has prepared litigation-grade hydrogeologic diagrams (Exs. 35-A through 35-D) synthesizing OCWD contour data, monitoring well data, and W-4150 construction records, and respectfully requests leave to supplement the record with a signed expert hydrogeologist declaration within 14 days of retention of a qualified expert, or as otherwise ordered by the Court.

87. The combination of the Talbert Barrier's coastal injection mound, inland pumping depressions, documented shallow Cr(VI) source concentrations, vertical conduits including unsealed Well W-4150, and the confirmed SMCMWC detection establishes a continuous advective pathway from the Site to municipal wells serving Plaintiff's community.

O. The Fraudulent HUD Environmental Review Record (HEROS No. 900000010330431)

88. To secure approximately $990,000 in federal housing funds for the Navigation Center, the City prepared and certified an Environmental Review Record

under HUD's HEROS system, HEROS No. 900000010330431. (Ex. TTTT.) Attachment C – the Contamination and Toxic Substances Worksheet – was submitted completely blank, while the City certified that environmental review and clearance were complete. At the time of certification, the City possessed or had ready access to the April 2020 soil data documenting Cr(VI) at 980 µg/kg. The blank Attachment C, juxtaposed against the City's contemporaneous knowledge, constitutes a false certification of environmental compliance to a federal agency. (Ex. UUUU.)

89. City Manager Oliver Chi personally executed the City's CARES Act Subrecipient Certification on December 1, 2020, certifying Coronavirus Relief Fund expenditures for the Cameron Lane project and allocating more than $1.19 million in "*Public Health Expenses*" to it – confirming the City was an active institutional actor with direct, personal knowledge of the project's funding, timeline, and contamination history, knowledge that makes the blank HUD Attachment C still more difficult to reconcile with good faith. (Ex. JJJ-1.)

90. The Environmental Review Record further lists the project's location as "*2000 Main Street*" – Huntington Beach City Hall's address – rather than the Navigation Center site, removing the record from location- and parcel-based public searches, paralleling the APN-substitution and dual-GeoTracker concealment alleged above. Plaintiff discovered the HEROS record on June 22, 2026; it is newly discovered evidence that could not have been included in the First Amended Complaint. (Ex. TTTT.)

VIII. TIMELINESS AND CONTINUING VIOLATIONS

A. Legal Standard

91. RCRA's imminent-and-substantial-endangerment standard is "*expansive*," requiring only that conditions may present a threat to health or the environment. *Meghrig v. KFC Western, Inc.*, 516 U.S. 479, 485–86 (1996). The endangerment need not be certain, nor must harm have already occurred; it is enough that contamination "*may present*" a risk. *Interfaith Community Org. v. Honeywell*, 399 F.3d 248, 258–59 (3d Cir. 2005). Courts apply a "*precautionary, forward-looking*" standard that focuses on risk, not proof of causation. *Laidlaw*, 528 U.S. at 181–83.

92. The Ninth Circuit recognizes that endangerment exists where contaminants migrate through groundwater or air pathways toward human receptors. *NRDC v. EPA*, 542 F.3d 1036, 1043 (9th Cir. 2008). Even low-level detections of carcinogens satisfy the standard when exposure is plausible. *Ecological Rights Foundation v. Pacific Lumber Co.*, 230 F.3d 1141, 1152 (9th Cir. 2000).

B. Cr(VI) and Co-Contaminants Present an Imminent Threat

93. Cr(VI) is a Group 1 human carcinogen with no safe exposure threshold. The Site contains Cr(VI) at concentrations up to 980 µg/kg, "49 times the more protective DTSC Cr(VI) residential soil screening level of 20 µg/kg" (SAVC ¶1). Lead, arsenic, toxaphene, and 4,4'-DDE co-occur at elevated levels (SAVC ¶40). These contaminants

are mobile, persistent, and capable of causing chronic disease, including cancer, renal injury, hematologic disorders, and respiratory compromise.

94. The presence of multiple contaminants at levels exceeding regulatory thresholds satisfies RCRA's endangerment standard. *Honeywell*, 399 F.3d at 258–62 (Cr(VI) plume migration constituted imminent endangerment).

C. Groundwater Migration Creates a Present and Ongoing Endangerment

95. The Site overlies Basin 8-1, and OCWD's Talbert Barrier creates a persistent inland gradient directing groundwater northeast toward Plaintiff's residence (SAVC ¶15). The unsealed 140-foot Well W-4150—described by OCHCA as a "*potential pathway of contamination to groundwater*" and "*a sink hole*" (SAVC ¶47)—provides a direct vertical conduit for contaminants to enter the aquifer.

96. The May 2026 detection of Cr(VI) at 0.95 µg/L in SMCMWC's North Well (SAVC ¶16) confirms active plume migration. This detection is 47.5 times California's Public Health Goal and lies precisely along the predicted advective axis. OCWD monitoring well MW-9 also shows Cr(VI) above background (SAVC ¶18).

97. Courts routinely find imminent endangerment where contaminants appear in downgradient drinking-water wells. *Honeywell*, 399 F.3d at 258–62; *NRDC*, 542 F.3d at 1043.

98. The expired NPDES permit (SAVC ¶17) and the un-engineered trench-and-pipe system installed in place of the represented StormTech chambers (SAVC ¶17) accelerate downward migration, increasing the risk of exposure.

D. Airborne Toxic Dust Presents an Independent Endangerment

99. The Site's asphalt cap is two inches thick over loose gravel, violating City Specification No. 431-92 (SAVC ¶19). Daily high-pressure washing by Mercy House aerosolizes Cr(VI)- and lead-laden soils (SAVC ¶19). Prevailing winds carry this dust northeast toward Plaintiff's residence (SAVC ¶19).

100. Plaintiff has personally observed dust clouds and experienced respiratory symptoms documented in medical records (SAVC ¶20). Airborne exposure to carcinogenic dust constitutes imminent endangerment. *Ecological Rights Foundation*, 230 F.3d at 1152.

101. The cap's structural failure—combined with daily washing—creates continuous, intermittent releases satisfying *Gwaltney*'s requirement for ongoing violations.

E. Engineered and Historical Conditions Increase the Risk

102. Multiple engineered and historical features amplify endangerment:

(1) **Unsealed Well W-4150.** OCHCA warned the well "*may have not been capped or destroyed properly*" and is a "potential pathway of contamination" (SAVC ¶47). No destruction permit exists (SAVC ¶49).

(2) **Un-engineered trench-and-pipe substitute system**. Installed in place of the represented StormTech MC-3500 chambers (Section VII.J-2, infra), directly in contaminated soil, and drives soluble contaminants downward (SAVC ¶17).

(3) **Expired NPDES permit.** WDID 8 30W004769 expired one day before the NFA (SAVC ¶17), eliminating regulatory oversight.

(4) **Asphalt cap failure.** Two-inch cap over loose gravel violates municipal specifications (SAVC ¶19).

(5) **Daily high-pressure washing.** Aerosolizes contaminated soils (SAVC ¶19–20).

(6) **Historical flooding and storm drain easement.** Chronic deposition of industrial contaminants documented since 1995 (SAVC ¶34–35). These conditions collectively create a present, ongoing, and scientifically supported risk of exposure.

F. Plaintiff's Current Exposure Confirms Endangerment

103. Plaintiff resides two miles downgradient within the Bolsa/Midway **Disadvantaged Unincorporated Community** (SAVC ¶14). The May 2026 Cr(VI) detection in his drinking-water well (SAVC ¶16) confirms active exposure. Plaintiff's respiratory symptoms following dust events (SAVC ¶20) further demonstrate ongoing harm.

104. Courts recognize that current exposure—even at low levels—constitutes imminent endangerment. *Laidlaw*, 528 U.S. at 181–83.

G. Endangerment Does Not Require Proof of Causation

105. RCRA does not require Plaintiff to prove that contaminants have already caused disease. It requires only a showing that conditions may present a risk. *Meghrig*,

516 U.S. at 485–86. The presence of carcinogens in Plaintiff's drinking water and airborne dust satisfies this standard.

H. Requested Relief Will Abate the Endangerment

106. Sealing Well W-4150 will eliminate the primary vertical conduit to the aquifer. Suspending operation of the trench-and-pipe system installed in place of the represented StormTech chambers will halt downward migration. Replacing the cap and ceasing high-pressure washing will eliminate airborne releases. These remedies will materially reduce exposure and therefore abate imminent endangerment. *Laidlaw*, 528 U.S. at 185.

107. Under *Gwaltney of Smithfield, Ltd. v. Chesapeake Bay Foundation, Inc.*, 484 U.S. 49, 57 (1987), RCRA citizen suits are not time-barred where a defendant's conduct constitutes a "*continuous or intermittent violation*" rather than a "*wholly past*" occurrence. Here, each Defendant has committed acts within the limitations period that constitute separate and continuing violations:

(a) **City of Huntington Beach**: On April 29, 2026, the City executed the HHAP MOU admitting ongoing cap failure (§§ 79-80); on November 18, 2025, it participated in the Beach Boulevard SAR upload (§ 61); and it continues to operate the un-engineered trench-and-pipe system installed in place of the represented StormTech chambers, and a substandard cap (§ 19), on a daily basis.

(b) **OCHCA**: On June 1, 2026, it produced previously withheld Cr(VI) data; on June 29, 2026, it issued a CPRA postponement letter stating it "***will not be producing any records***" (§ 62); and it continues to maintain the void NFA as the governing closure determination (§§ 63-64); and on April 28, 2025, it received actual notice from Plaintiff of his hospitalizations described at ¶12 and of a fellow resident's death, and took no reportable action (§§ 70-A–70-B).

(c) **RWQCB**: On June 12, 2026, it convened a closed-session defense meeting about this action (§ 82); it continues to maintain dual GeoTracker records and the expired NPDES permit without enforcement; and it has received 62 addenda without substantive response (§ 6).

(d) **EEC Environmental**: Its fabricated reports continue to serve as the sole regulatory predicate for the NFA; by allowing its false data to remain the basis for the Site's closure, EEC continues to contribute to the present endangerment. *Meghrig v. KFC Western*, 516 U.S. 479 (1996).

(e) **Mercy House**: Daily high-pressure washing constitutes ongoing illegal disposal (§ 19).

(f) **Mitsuru Yamada**: His failure to disclose the cesspool, well, and contamination continues to have ongoing effects; moreover, the 1990 permit remains uncompleted, and the void remains unsealed (§ 39).

(g) **MZT**: The WRRP certification in August 2020 is within the limitations period (5 years from filing in 2026), and the unpermitted disposal of demolition debris continues to affect the Site.

(h) **County of Orange**: Through OCPW's ongoing role in Site maintenance and through OCHCA's continuing regulatory assertion, the County remains an active participant.

108. Each of these acts constitutes a separate violation within the limitations period, and the endangerment is not "*wholly past*." Accordingly, no statute-of-limitations defense bars this action.

IX. ABSTENTION DOES NOT BAR THIS ACTION

109. Defendants may argue that the Court should abstain under *Burford*, *Younger*, or the primary-jurisdiction doctrine because of the State Water Board petition (A-2926) and OCHCA's regulatory process. These arguments fail for the following reasons:

(a) The State Water Board petition was placed in abeyance on February 23, 2026 and does not constitute "*diligent prosecution*" under 42 U.S.C. § 6972(b)(1)(B). See, e.g., *Friends of the Earth v. Laidlaw*, 528 U.S. 167, 189-90 (2000).

(b) RWQCB has expressly stated through counsel that it "*does not plan to argue diligent prosecution*" (§ 8) – a binding admission that defeats any *Younger* or primary-jurisdiction argument based on ongoing state enforcement.

(c) OCHCA has obstructed CPRA requests and withheld critical data for over six years, undermining any claim that the state provides an "*adequate remedy*." (§ 62.)

(d) This is a narrow federal statutory claim under RCRA, not a broad challenge to a complex state regulatory scheme; *Burford* abstention is inapplicable. See, e.g., *Quackenbush v. Allstate Ins. Co.*, 517 U.S. 706, 728-29 (1996).

(e) RCRA's citizen-suit provision specifically authorizes federal suits against state and local agencies, 42 U.S.C. § 6972(a), and Congress intended federal courts to adjudicate such claims. See, e.g., *Interfaith Community Organization v. Honeywell*, 399 F.3d 248, 261-63 (3d Cir. 2005).

(f) The relief sought – sealing a well, requiring lawful investigation, and ceasing unpermitted discharges – is specific injunctive relief that does not require ongoing supervision of a state regulatory scheme.

110. For these reasons, abstention is inappropriate, and this Court should exercise its jurisdiction.

X. ACTIVE STRUCTURAL FAILURE OF REMEDIAL CAPS AND FAILURE OF AGENCY OVERSIGHT

111. Defendants previously asserted, and state regulatory bodies (including the DTSC and RWQCB) accepted, a passive surface barrier—specifically an asphalt cap—as a complete and permanent remedial measure for the historically

contaminated parcels located at the Huntington Beach Navigation Center (HBNC).

112. As established by recent site inspections conducted **six weeks prior to the filing of this Second Amended Verified Complaint**, the alleged "***engineering control***" has suffered cataclysmic structural failure. Photographic evidence, designated and incorporated herein as **Exhibit WWWW-4**, documents pervasive fissures and complete ruptures of the asphalt pavement across the facility grounds.

113. Specifically, as shown in **Exhibit WWWW-4,** mature vegetative growth—including pervasive, three-foot-tall weed root systems—has physically split the asphalt cap from beneath, tearing open the surface layer and exposing the underlying un-remediated, toxic soil matrix containing elevated concentrations of Hexavalent Chromium [Cr(VI)], Lead, Toxaphene, 4,4-DDE, and Arsenic in direct violation of established screening levels.

XI. CLAIMS FOR RELIEF

FIRST CLAIM FOR RELIEF

Violation of RCRA, 42 U.S.C. § 6972(a)(1)(B)

(Imminent and Substantial Endangerment)

(Against All Defendants)

114. Plaintiff incorporates by reference all preceding paragraphs.

115. RCRA authorizes suit against any person "*who has contributed or is contributing to the past or present handling, storage, treatment, transportation, or disposal of any solid or hazardous waste which may present an imminent and substantial endangerment to health or the environment*." 42 U.S.C. § 6972(a)(1)(B).

116. The Site contains Cr(VI), lead, arsenic, toxaphene, and 4,4'-DDE at concentrations far above health-protective screening levels. (Exs. NNN-5, NNN-6.)

116-A. The severity of this threat is independently confirmed by the State Water Resources Control Board's own GeoTracker record for the Site (Beach Boulevard Project, T10000018579), which carries a **DWR 2016 Disadvantaged Community** designation and assigns the Site a CalEnviroScreen 3.0 Toxic Releases percentile of **93%,** placing it in the top 7% of all census tracts statewide for toxic release burden. (Ex. WWWW-6.)

117. **Seven active mechanisms** continue to mobilize these contaminants, creating imminent and substantial endangerment:

(a) the unsealed Well W-4150, providing a direct conduit to the regional aquifer (§§ 38-40);

(b) the un-engineered trench-and-pipe system installed in place of the represented StormTech chambers, driving contaminants downward during every storm event (§ 17);

(c) the expired NPDES permit and ongoing unpermitted wastewater discharges (§ 71);

(d) the failing Sprung Structure lining admitted in the April 2026 HHAP MOU (§§ 79-80);

(e) the uncompleted cesspool backfill (§ 39);

(f) OCHCA's undischarged obligation to reevaluate the conditional 2020 closure upon the Site's conversion to permanent residential use (§§ 68-69); and

(g) continued post-petition GeoTracker manipulation (§ 81).

The May 2026 SMCMWC detection at 47.5 times the Public Health Goal confirms these mechanisms have resulted in actual migration to the water supply serving Plaintiff's community, and the documented respiratory fatality of a fellow HBNC resident (Section V.A) is independent evidence of the human-health endangerment these mechanisms have caused.

118. Each Defendant has contributed or is contributing to the handling or disposal of hazardous waste presenting imminent and substantial endangerment:

(a) **City of Huntington Beach**: orchestrated the fraudulent regulatory clearance alleged in Sections VII.B, D-1, and O; installed an un-engineered trench-and-pipe system in place of the represented StormTech chambers, in apparent defiance of OCHCA's own trenching prohibition (VII.J-1); maintains a substandard cap (V.C); waived the well-destruction permit despite its own 1969 admission (VII.A-1); executed

the April 2026 HHAP MOU admitting ongoing engineering control failure (VII.K); and falsely certified federal environmental compliance to HUD (VII.O).

(b) **OCHCA:** issued an NFA void on eight independent grounds, including a foundational RAS letter fabricated by copying an unrelated case file (VII.D-1, G); accepted non-compliant analytical data (VII.H); maintained the false NFA for over six years without the reevaluation its own 2022 comment required (VII.I); assembled the GeoTracker record retroactively (VII.D, L); and exercised direct operator authority under the Emergency Facility Use Agreement (VII.I).

(c) **RWQCB** (Executive Officer Lindberg): through the affirmative misdirection alleged in Section VII.M, has contributed to the present handling of hazardous waste at an occupied residential site.

(d) **EEC Environmental**: prepared false Phase I and II assessments, submitted forged RAS forms, retroactively annotated boring designations, and fabricated fieldwork records, as alleged in Sections VII.B, D-1, and E. EEC's fabricated reports remain the sole basis for the NFA; by allowing its false data to remain the regulatory predicate, EEC continues to contribute to the present endangerment.

(e) **Mercy House**: conducts daily high-pressure washing generating unpermitted contaminated wastewater discharge and aerosolizing Cr(VI), as alleged in Sections V.C and VII.J.

(f) **Mitsuru Yamada**: failed to disclose documented subsurface contamination features – the cesspool, Well W-4150, and historical contamination – during the 2020 sale, enabling continued resident exposure, as alleged in Section VII.A.

(g) **Macro-Z-Technology Company**: documented contaminated investigation-derived waste, received no adequate regulatory direction after inquiring, and then certified a WRRP routing demolition debris to an unauthorized facility without characterization, manifesting, or licensed transport, as alleged in Section VII.J-1.

(h) **County of Orange:** through OCHCA's regulatory and operator conduct and, independently, through OCPW's construction-management failures alleged in Section VII.J-1, has contributed to the handling and storage of hazardous waste presenting imminent and substantial endangerment. Cal. Gov't Code § 815.2.

119. A claimed remediation authorization does not defeat a § 6972(a)(1)(B) claim where contamination remains above health-based thresholds; the question at the pleading stage is not whether some cleanup occurred but whether contamination remains that may present an imminent and substantial endangerment. *Honeywell*, 399 F.3d at 261-63. A closure *void ab initio* on eight independent grounds cannot serve as a remediation defense at any stage.

120. Post-filing and continuing conduct further satisfy *Gwaltney*'s "*continuous or intermittent violation*" standard: the March 2025 BulkFile assembly, the November 2025 SAR upload, the April 2026 HHAP MOU admission, the June 2026 RWQCB closed session, OCHCA's non-response to the October 2020 trenching-violation

photographs, and the unvalidated analytical data that continues to underlie an active NFA governing an occupied facility above documented Cr(VI) contamination. *Gwaltney*, 484 U.S. at 57.

121. Plaintiff is entitled to injunctive relief requiring abatement of the imminent and substantial endangerment.

SECOND CLAIM FOR RELIEF

Violation of RCRA, 42 U.S.C. § 6972(a)(1)(A)

(Illegal Disposal of Hazardous Waste)

(Against All Defendants)

122. Plaintiff incorporates by reference all preceding paragraphs.

123. RCRA prohibits the "*past or present handling, storage, treatment, transportation, or disposal of any solid or hazardous waste*" in violation of applicable regulations or permits. 42 U.S.C. § 6972(a)(1)(A).

124. Defendants have engaged in, contributed to, or allowed illegal disposal of hazardous waste through:

(a) installation and operation of the un-engineered trench-and-pipe system installed in place of the represented StormTech infiltration chambers, driving contaminants downward (Ex. 8);

(b) daily high-pressure washing that mobilizes contaminated soil and generates unpermitted wastewater discharges (Ex. 19);

(c) disturbance and dispersal of contaminated soil during grading without proper hazardous-materials controls (Ex. 20);

(d) failure to seal Well W-4150, allowing direct migration to groundwater (Exs. 7, 10, 14);

(e) storage of investigation-derived waste beyond the 90-day RCRA deadline without a permit (§§ 75-78); and

(f) routing demolition debris to an unauthorized facility without hazardous-waste characterization, manifesting, or licensed transport (§ 77).

125. These actions constitute ongoing "*disposa*l" under RCRA.

126. Specific violations include:

(a) **City of Huntington Beach**: Violated 40 C.F.R. § 257.3-4, Health & Safety Code § 25280 et seq., and its own expired NPDES permit.

(b) **OCHCA**: Violated Health & Safety Code § 101480 and SB 1248 by retaining jurisdiction without DTSC referral, and issued a closure certificate without required data or public notice.

(c) **RWQCB**: Violated 33 U.S.C. § 1311 and its Porter-Cologne duties by allowing unpermitted discharges and maintaining sanitized GeoTracker records.

(d) **EEC**: Violated 40 C.F.R. § 312.10, Business & Professions Code § 7835, and 40 C.F.R. Part 257 by submitting forged RAS forms and fabricated reports.

(e) **Mercy House**: Violated 33 U.S.C. § 1311 and 40 C.F.R. Part 122 by conducting unpermitted high-pressure washing.

(f) **Mitsuru Yamada**: Violated Health & Safety Code § 25359.7 by failing to disclose known contamination, the unsealed well, and the uncompleted cesspool backfill.

(g) **Macro-Z-Technology Company**: Violated 40 C.F.R. § 262.11 by failing to complete waste characterization before construction, and 40 C.F.R. Part 262 by designating a non-licensed transporter and non-RCRA-permitted facility for probable hazardous demolition debris, certifying a WRRP under penalty of perjury that treated the debris as ordinary municipal solid waste despite Zatica's own June 16, 2020 documentation of site contamination 63 days earlier (Section VII.J-1).

(h) **County of Orange**: Through OCPW's failure to ensure proper waste characterization, manifesting, and disposal, and through its vicarious liability for OCHCA's regulatory and operator conduct, the County violated RCRA and its implementing regulations.

127. Plaintiff is entitled to declaratory and injunctive relief to abate these ongoing violations.

THIRD CLAIM FOR RELIEF

Declaratory and Injunctive Relief

(Against All Defendants)

128. Plaintiff incorporates by reference all preceding paragraphs.

129. Plaintiff seeks a declaration that Defendants have violated RCRA and an injunction requiring abatement of the violations and endangerment, as detailed in the Prayer for Relief.

130. Plaintiff is entitled to such relief because:

(a) the NFA is *void ab initio* and provides no legal basis for continued operation of the Site without proper investigation and remediation;

(b) the ongoing disposal and migration mechanisms continue to threaten Plaintiff and the environment; and

(c) no adequate remedy at law exists for the continuing exposure to carcinogenic and toxic substances.

XII. PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court:

1. Declare that Defendants have violated RCRA § 6972(a)(1)(B) by contributing to conditions presenting imminent and substantial endangerment to health and the environment;

2. Declare that Defendants identified in the Second Claim have violated RCRA § 6972(a)(1)(A) by contributing to illegal disposal of hazardous waste;

3. Order Defendants to seal Well W-4150 in accordance with state and federal well destruction standards within 90 days;

4. Order Defendants to complete the cesspool backfill and formal closure at 17642 Beach Boulevard documented in the 1990 Building Permit, under DTSC oversight, within 90 days;

5. Order Defendants to cease all unpermitted discharges, including high-pressure washing, immediately;

6. Order Defendants to suspend operation of the trench-and-pipe system installed in place of the represented StormTech infiltration chambers, pending lawful environmental review;

7. Order a full Site investigation under DTSC oversight, including soil, soil-gas, and groundwater sampling sufficient to characterize the full extent of Cr(VI) and co-contaminant migration;

8. Order preparation of a lawful Site Assessment Report with QA/QC documentation, boring logs, and laboratory data submitted in Electronic Deliverable Format (EDF) as required by 23 CCR § 3893(b), reviewed and validated by EDCC, and subject to independent third-party quality assurance;

9. Order implementation of appropriate remediation and institutional controls, including a lawful engineered cap meeting City Specification No. 431-92 standards;

10. Order OCHCA to perform the land-use-change reevaluation required by the conditional terms of its own August 21, 2020 closure record and by its August 12, 2022 Comment C-2, within 90 days;

11. Order the RWQCB Executive Officer, Eric Lindberg, to:

(a) enforce the expired NPDES stormwater permit (WDID 8 30W004769) or require a new permit application within 30 days;

(b) consolidate the dual GeoTracker records (T10000018579 and T10000020555) into a single accurate record; and

(c) provide written notification to DTSC, CalEPA, and OEHHA of the Cr(VI) detections documented in the Eurofins Calscience reports;

12. Award Plaintiff costs of litigation, including expert witness fees and any reasonable fees recoverable by a pro se litigant, as authorized by 42 U.S.C. § 6972(e);

13. Grant such other and further relief as the Court deems just and proper; and

14. Plaintiff respectfully requests leave to supplement the record with a signed expert hydrogeologist declaration and finalized litigation-grade figures within 14 days of retention of a qualified expert, or as otherwise ordered by the Court.

XIII. VERIFICATION

I, Jesse Knabb, am the Plaintiff in this action. I have read the foregoing Second Amended Verified Complaint and know its contents. The facts stated therein are true to the best of my knowledge, information, and belief, and those matters stated on information and belief I believe to be true. I declare under penalty of perjury under the laws of the United States that the foregoing is true and correct.

Executed on August 17, 2026, at Midway City, California.

Respectfully submitted,

/s/ Jesse Knabb

Plaintiff, In Pro Per
15161 Van Buren St., Unit 206
Midway City, CA 92655
(949) 274-6223
jesseknabb@gmail.com

NOTICE OF REVISIONS

A redline version showing all amendments from the First Amended Complaint will be filed contemporaneously herewith, as directed by the Court's July 13, 2026 Order.

LIST OF NEW EXHIBITS

Exhibit WWWW-1 - Site Summary and Recommendations_AM

Exhibit WWWW-2 - Affordable Housing Overlay; Negative Declaration for Beach and Cameron Parcels

Exhibit WWWW-3 - T0605901823.FA0023960 Bulkfile

(City of Huntington Beach Water Operations facility at 19001 Huntington Street, Regulatory Failures and Non-Compliance.)

Exhibit WWWW-4 - HBNC Weeds Breaching Asphalt Cap (March - July 2026.)

Exhibit WWWW-5 - City of Huntington Beach Grading Plans PW# 20-020, StormTech MC-3500 Installation Sheets, and StormTech MC-3500 Product Specification Sheet.

Exhibit WWWW-6 - GeoTracker Beach Boulevard Project (T10000018579) Environmental Justice Data (DWR 2016 Disadvantaged Community Designation and CalEnviroScreen 3.0 Toxic Releases Percentile of 93%.)

THIS PAGE INTENTIONALLY LEFT BLANK